

Well-Being in Law Starter Kit

Everything you need to launch or strengthen your firm's well-being initiative.

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The Guide

A 7-step playbook drawn from interviews with well-being leaders at leading law firms.

2

Quick-Reference Tools

The guide's key frameworks distilled onto single pages you can print, pin up, or bring to a meeting.

3

Sample Handouts

Three tools from Flourish's workshop library – the kinds of resources your people walk away with.



PART OF THE WELL-BEING IN LAW STARTER KIT

You Signed the ABA Well-Being Pledge. Now What?

A Guide for Law Firms

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About the Author

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Jon graduated from Harvard Law School and Brown University. After law school, he clerked on the United States Court of Appeals for the Ninth Circuit and worked as a litigator at public-interest law firms in Los Angeles and New York City.

Jon has practiced mindfulness and related modalities since 2006 and has studied with teachers from around the world, including psychologists, neuroscientists, and traditional Buddhist masters. In 2014, Jon completed a seven-month silent meditation retreat. He still does two months of silent retreat per year.

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Acknowledgments

Anne Brafford contributed many insightful points to this guide, suggested helpful changes to its overall structure, and connected me with terrific interviewees. Anne was also the one who initially encouraged me to follow through on this idea after I blurted it out during a planning meeting for Well-Being Week in Law.

Mary Ellen Connerty, formerly of O'Melveny & Myers, and Joe Maguire, of Reed Smith, joined Anne and me to create and deliver a presentation based on this guide, then in draft form, for NALP's Professional Development Institute. In the process, they had a major influence on this report, drawing on their firsthand experience with law firm well-being initiatives.

I am grateful to the following legal well-being leaders who shared their experiences and insights with me (as well as to those who did so anonymously), and to their organizations:

Thomas Adrian, *Sheppard Mullin*

Luke Cadigan, *Cooley*

Melissa de Carvalho, Stacy Glover, and James Keshavarz, *Gibson Dunn*

E. Casey Fairchild, *Perkins Coie*

Krista Larson, *Stinson*

Apryl Mathes, *Haynes & Boone*

Johnna Story, *Finnegan*

Lisa Barrow, *Porter Hedges*

Jordana Confino, *JC Coaching & Consulting*

Hannah Fabrikant, *Manatt, Phelps & Phillips*

Rachel Jennings, *Taft*

Marlon Luftiyya, *Neal Gerber Eisenberg*

Annette Sciallo, *Latham & Watkins*

Introduction

You're passionate about attorney well-being, and your organization even signed the ABA Well-Being Pledge. But how do you actually get started? Which programs and services are likeliest to resonate with your lawyers and staff? How do you get buy-in? What should your launch look like? I asked dozens of well-being leaders these questions and more. In this report, I share their insights so you can use them to supercharge your own well-being initiative.

Before we dive in, a few quick points:

- ✓ These are recommendations, not requirements. Although the firms I spoke with converged on many points, there were many different approaches and many instances where a firm deviated from the norm and found success. There is no one right way to do this.
- ✓ That said, if I make a recommendation here, it is usually because I heard it from multiple sources.
- ✓ When I offer a general recommendation or best practice, I will, in most cases, fortify it with specific examples from law firms I spoke with. Those examples might spark an idea for you. (Or you might just copy them outright, which I encourage!)

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Get Buy-In from Leadership

The Necessity of Support from Leadership

- I asked many well-being professionals how they were able to get firm leadership on board. The most common answer among firms with robust well-being initiatives was that leadership was already on board, from the start, with no need to convince them.
- In several instances, top leaders – partners, chairs, C-level executives – were directly involved in developing the firm's specific programs and were, in some cases, the ones who initially pushed for the creation of a well-being initiative.
- Several firms remarked that this unforced enthusiasm from the folks at the top was crucial to the success of their initiatives.
- One firm noted that, if its managing partner hadn't been the one to initiate the well-being initiative, inspiring buy-in among the other partners, "I don't know if the programs would have been as successful."

Quote

"If you don't have true buy-in from the top, don't waste your time.... You absolutely need to have top leadership, and leadership across the firm, buying into this."

- One firm attests to this from the other direction, reporting that their professional development and human resources teams are "going it alone" without real buy-in from management or the partners, and that this has slowed their progress.

For firms that don't have that ready enthusiasm from leadership, this information might be a bit disheartening.

From the field

But I encountered one notable counterexample, in which a firm developed a well-being initiative from the bottom up, with top leadership signing on only later. The firm's professional development team, which ultimately spearheaded the initiative, decided not to wait for top-level management to recognize well-being as a priority. They simply got started, incorporating well-being tenets and programming into team meetings, the firm's mentoring program, and the firm's associate development plan. They stuck to small implementations that didn't require official sign-off. When that went well, firm leadership took notice and came to embrace the initiative.

STEP 1: GET BUY-IN FROM LEADERSHIP (CONTINUED)

Leadership Involvement Can Drive Engagement

I discuss the issue of engagement more fully in a later section, but one of the best ways to drive engagement in well-being initiatives is for partners and other firm leaders to set an example by participating in programs themselves.

Quote

"People won't believe in this unless they see partners buying in."

Leaders should also act as "champions" and actively encourage others to participate. These senior-level champions might do any of the following:

- Forward emails about an upcoming program along with a note that she is attending and that others should consider doing so too.
- Find opportunities to mention the firm's well-being programming during meetings and conversations.
- Give employees positive feedback about their participation, including acknowledging the new skills they've acquired and the positive impact of their participation on the firm as a whole.

Several firms mentioned that their leadership speak frequently about the importance of mental health and well-being. One firm CEO, for instance, sends out weekly video clips of himself on that topic. These affirmations of commitment to well-being are important and helpful, but it probably goes without saying that actions speak louder.

From the field

One firm chairman uses his visits to local offices as an opportunity to take the entire office to a spin class, one of his favorite physical well-being activities. As mentioned elsewhere, this same firm, on the chairman's initiative, allows attorneys to count up to 25 hours of mindfulness practice toward their yearly billable hour requirements.

STEP 1: GET BUY-IN FROM LEADERSHIP (CONTINUED)

Leadership Transparency Can Combat Stigma

Many firms mentioned the need to overcome stigmas around well-being: that tending to well-being is a poor use of time, that one could be using that time more productively, that it signals weakness or undependability, that struggles with well-being are rare and best kept private.

One of the most powerful ways to combat these stigmas is for partners and other firm leaders to be transparent and vulnerable about their own challenges around well-being. For example, partners at several firms, including at least one managing partner, have spoken frankly and openly about their struggles with substance abuse.

Financial Investment

When a firm invests resources in its well-being initiative, the difference shows. One firm stressed that "the willingness to invest is key" and that leadership should view that investment as one in employee productivity and satisfaction. I'd add that it is also an investment in employee retention and recruitment. At the extreme end, one firm offers a number of custom, in-house services that required years and considerable financial investment to produce.

By the Numbers

Replacing a third-year associate costs a firm **\$650,000–950,000** (N.Y. Law Journal, 2023). Against that backdrop, even a well-resourced well-being initiative is a modest line item – and a direct hedge against the single most expensive outcome a firm can have.

One firm reported an interesting approach to securing budget. The well-being team presented firm leadership with three possible "tiers" of well-being initiative:

Basic	A DIY approach involving no cost
Intermediate	A resourced approach requiring some funding
Advanced	A full, robust program involving hiring

Leadership ultimately approved them for the "intermediate" tier, which they were happy with, especially as a starting point.

From the field

If budget is constrained, it is possible to do some well-received, low-cost well-being programs. For example, two separate firms mentioned doing gratitude letter exchanges, which doesn't require any resources other than paper and pens, and perhaps some food to lure people in. One of the firms reported that the program was so popular that it required an emergency paper restock.

2

STEP 2 OF 7

Conduct a Needs Assessment

Talk to your people. Learn what their concerns are, what they're struggling with, and what topics interest them. This can be done in a number of ways, with varying degrees of formality.

Surveys

Focus Groups

Wellness Ambassadors

Informal Conversations

- You might administer surveys or conduct focus groups to assess your people's readiness, motivation, or preferences around well-being programming.
- One firm designated "wellness ambassadors" within each office to collect ideas for programming.
- At one midsize firm, leadership involved in well-being had many informal conversations with attorneys that yielded insights leading to specific programs, for instance on elder care and depression.

Map Out Your Organizational Structure

The Committee

- Most firms I spoke with formed some sort of committee, with representatives from across the firm, that either oversees or advises on the firm's well-being initiative.
- In an effort to represent a cross-section of the firm, these committees are often diverse in terms of members' roles (lawyers and staff), seniority (partners, associates, C-level staff, director- and manager-level staff), and/or geography (e.g., representatives from every region or from every office).
- One firm indicated that its committee was also diverse in terms of identity (e.g., gender, race, ethnicity, orientation).
- Committee sizes range from a handful of people to more than 30.

Who Runs the Show?

- Several firms cautioned against a "too many cooks" problem, especially with a large committee or multiple involved firm stakeholders.
- One solution is to have one person, or a small team, with primary responsibility for the well-being initiative. This arrangement can coexist with a larger, more representative committee: the committee plays an important advisory and oversight role, but the narrower delegation of responsibility prevents logjams and allows for quicker, more decisive action.
- According to one firm with a large, well-funded, and long-established well-being program, it's crucial to have a single person who ultimately "owns" the initiative.

STEP 3: MAP OUT YOUR ORGANIZATIONAL STRUCTURE (CONTINUED)

- Another firm has a small task force consisting of the Director of Talent and Diversity, the professional development manager, and some human resources staff.
- Even when a firm consolidates responsibility in one person or team, it helps to have other departments "plugged into" the initiative so that the core team can seek their contributions and keep them in the loop about new developments.
- Another way to keep things moving with a large committee is to submit certain projects just to a subset of the committee for initial review.
- Don't put responsibility for well-being on someone's already full plate. Too often, the role falls to someone already busy with their work in professional development, human resources, or diversity and inclusion. Instead, create a dedicated role – potentially even a department – for well-being.
- Several firms have manager- and director-level roles dedicated to well-being.

From the field

One firm has an Employee Engagement department, run by a Chief Engagement Officer, within which the firm's Well-Being initiative resides, run by a Director of Employee Well-Being. One firm even has a Chief Mindfulness Officer for Europe.

Design and Launch Programming

Getting Started with Programming

Decide who you're serving: attorneys, staff, or both. Many firms stressed the importance of including both attorneys and staff in the firms' initiatives – well-being is an issue that reaches everyone, regardless of role. Taking this inclusive approach doesn't preclude doing individual programs just for attorneys or just for staff, but firms did stress the value of doing at least some programs that bring attorneys and staff together, for purposes of building community and communicating that well-being is a shared, firm-wide issue.

Start small and build slowly. One firm notes, "Wellness has many facets. You don't need to hit them all." Another firm cautions that starting with a "big, flashy launch," rather than organically building the initiative over time, can feel forced or artificial.

From the field

One firm started in 2005 with informal discussions and didn't officially launch its well-being initiative until four years later. That timeframe may not be as viable now, with well-being at the forefront of the industry, but it still makes sense to take time, be thoughtful, and do it right. That firm started its initiative with just one element: a physical activity challenge. The initiative then grew over time.

Quote

Multiple firms gave the same advice: "don't overthink; just get started." You don't need to create an entire plan at the outset; you can launch with one program and let things evolve. Data and analysis are helpful, but it's good to just jump in. Don't succumb to analysis paralysis or perfectionism.

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

One firm suggests leading with a CLE-eligible well-being presentation, using the CLE to hook attorneys, then reeling them in with a great speaker. Another firm suggests emphasizing data and evidence to convert skeptics, offering an ongoing mindfulness program that highlights the practice's measurable changes to the brain, not just its "feel-good effects."

Committing Publicly

Making a public commitment to well-being is an important way to provide the organization with healthy accountability and to signal the organization's values to its people. Good ways to do this are to adopt (and announce) a well-being policy and to sign the ABA Well-Being Pledge if you haven't already done so. But it's important to "walk the walk": to implement a strong, holistic well-being initiative, and to address the root causes of workplace stress and mental health issues, as I discuss later in this guide. Otherwise, the gap between the organization's words and its deeds will not be lost on your people.

Programming Best Practices

Pick your "pillars."

Some firms find it helpful to organize and focus their programming via a small number of broad categories or "pillars." One common approach we've seen is to have three pillars: a broad "physical" category, a broad "mental" or "emotional" category, and a wild card (for instance, financial well-being or substance abuse).

Include flexible, open-ended programs

Include flexible, open-ended programs that accommodate a variety of lifestyles, rather than one-size-fits-all.

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

From the field

One firm implemented a “design-it-yourself” challenge for physical well-being. Any employee who completed ten “well-being events” in a given month – which they could demonstrate through gym receipts, app check-ins, or any other method – received a monetary bonus. The firm was open-ended regarding what counts as a well-being event, allowing “just about anything” that “get[s you] out of your chair,” even meditation, despite the challenge being ostensibly focused on physical well-being. Another firm includes an open-ended “wellness goal” in its associate development plan, alongside its goals around business development, legal fundamentals, and so on. Associates choose for themselves what their specific wellness goal is: a gym habit, a meditation practice, or anything else conducive to well-being.

Empower local offices

As several firms noted, what works well in one office doesn't necessarily connect with another. Giving some autonomy to the folks involved with well-being at the office level also helps with buy-in. However, these firms offer firm-wide programs as well, viewing them as valuable for cultivating coherent community across the firm.

Go beyond the obvious

There are a few “core topics” that many robust well-being programs cover:

Mindfulness & Meditation

Nutrition & Diet

Physical Fitness

Stress Management & Resilience

Substance Abuse

But you needn't feel constrained by those – feel free to think outside the box. Often, interesting topics emerge from employee feedback and suggestions.

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

From the field

Two firms reported learning, thanks to conversations with employees, that elder care was a widespread concern the firms hadn't been aware of. They then implemented programs on that topic.

Other non-obvious topics that firms have focused on, to positive responses:

Office Ergonomics

Diabetes Prevention

Mental Health First-Aid Training

Financial Well-Being

Imposter Syndrome

Cardiovascular Health

Financial well-being, as firms defined it here, spans saving and investment strategies, financial planning, and loan consolidation.

Even within the above-mentioned "core topics," you might ask your providers (external or in-house) what creative or unusual options they offer:

From the field

One firm had its mindfulness provider lead unconventional, mindfulness-informed programs on dealing with digital distractions, solving sleep problems, and overcoming public-speaking anxiety. Another firm added a twist to the typical "physical fitness challenge" by hosting a "virtual race" that employees compete in every week on the same day, from their own neighborhoods or favorite running trails.

Make your programming frequent and varied

One midsize, single-office firm features an external speaker on a different well-being-related topic each month. They are careful to keep their programming fresh and avoid repeating the same sort of programming too frequently. Another firm has three firm-wide programs per month: one on stress management, one on physical fitness, and a "wild card."

"Good artists borrow; great artists steal."

Find inspiration by looking to what other organizations are doing. However, as several firms noted, every organization is different, and something that works well elsewhere may not be a fit for you. Look to others, but with the goal of determining what will work for your people.

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

Addressing Material Work Conditions

Improving employees' material work conditions – leave, benefits, autonomy, training and mentorship, pressure around hours, competitiveness of culture, and so on – is worth more than any well-being amenity.

Anne Brafford, a lawyer, law-firm well-being expert, and organizational psychology researcher, framed this idea in a helpful, concrete way. Anne wrote that the best approach to well-being includes three levels:

Primary	"Primary" prevention strategies help members stay healthy by rooting out causes of stress at work.
Secondary	"Secondary" prevention strategies help members cope with the inevitable work stressors that can't be eliminated to maintain well-being and avoid a downward spiral into a health disorder. The goal of these strategies is to alter the ways people perceive and respond to stressors. Health promotion strategies (that aim to amplify well-being, not just lessen ill-being) also can fit here or under the primary strategies.
Tertiary	"Tertiary" prevention strategies are aimed at facilitating treatment and providing rehabilitation and support for healing for members who already are experiencing serious health conditions.

As Anne pointed out, it's great to start with secondary and tertiary programming – that is, with "well-being programming" and treatment services – but it's not enough to stop there without addressing the root causes of stress and other well-being issues in your organization. This critique showed up several times in ALM's 2020 Mental Health and Substance Abuse Survey.

Quote

As one participant in ALM's 2020 survey put it: "[F]irms will continue happily running associates into the ground, and then offering them therapy."

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

To put it simply: people don't need stress-relief programming to the same degree when their jobs are less stressful in the first place.

From the field

One firm confessed that they didn't have, in their view, very robust well-being programming compared to some of their peer firms. Yet Vault ranks them at the top of both "best firms to work for" and "best firms for wellness." Why? It may have something to do with their comparably excellent rankings for "associate/partner relations," "firm culture," "formal training," "hours," "informal training," and "pro bono," among other areas.

Providers

Vet your vendors thoroughly

Do it yourself: don't outsource the vetting process.

From the field

One firm learned this lesson the hard way. They trusted an outside resource, their Employee Assistance Program ("EAP"), to vet a speaker. The presentation went badly and was, in the firm's words, "an embarrassment to the program." If that program had been part of their launch, the firm said, "it would have sunk the program." They now carefully vet all vendors themselves.

Consider working with a smaller group of trusted external partners

One firm with a well-established well-being initiative takes this further than most: it works only with a small, handpicked group of top experts in their respective fields, collaborating closely to craft custom programs tailored to the firm's needs. As the firm put it, "We have no vendors – only partners.... Absolutely nothing is purchased off the shelf." This firm's well-being program is more than a decade old, well-funded, and benefits from high levels of commitment from top leadership.

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

Rely on trusted, credentialed content

Because there is such demand for digital well-being content these days, individuals and organizations are mass-producing vast quantities of it, and the quality varies widely. Here are some suggestions:

- Do research on who the leading experts are on a given topic. You can probably rely on their content and can also identify folks whom they endorse and work with; those folks may also be reliable sources of good content.
- Another good option is content from academic centers, i.e., universities and hospitals. If you are going to use blog-type content, find pieces that are reviewed and approved by a credentialed expert.
- Multiple firms noted that the ABA's Attorney Well-Being Committee and the National Task Force on Lawyer Well-Being (now the Institute for Well-Being in Law) offer a variety of free, high-quality tools, activity templates, documents, multimedia offerings, and other resources.

When you have genuine subject-matter expertise in-house, use it

One firm's global wellness director is also an exercise physiologist. He offers in-house expertise and programming around physical fitness. That firm's global wellness manager can do the same around nutrition and diet because she has a degree in integrative nutrition. What's key is that these people have legitimate expertise and credentials in their respective topics – they are not just enthusiasts.

Best-Received Programs

I asked law firms which well-being programs were best received by their people. Here is what they said.

Responses I heard more than once

From the field

Confidential access to mental health personnel. A repeated theme I heard from law firms was dissatisfaction with the limits of their EAPs and the need to go beyond the typical EAP model, in which intake counselors answer the phones and provide referrals to local mental-health providers. One firm is investigating tele-therapy services like Talkspace and Ginger. Another firm is using a related service, Life Moments by the company I M Human, that doesn't employ therapists – instead, it connects employees with “listeners” to whom they can articulate their thoughts, challenges, and frustrations. It has been popular with the firm's employees, suggesting that often folks aren't looking for a solution so much as they simply want to be heard. The service also offers the firm data about what issues employees are concerned with, which enabled the firm to identify an interest in elder care, for instance. Of course, it's not enough to provide only an opportunity to be heard, without an avenue for actually addressing concerns: the firm that uses I M Human also switched their EAP to a small, law-focused provider that the firm says provides above-and-beyond service, including onsite counseling. Another firm replaced its EAP with a global resource it developed itself that offers 24/7 phone access to masters-level clinicians. Yet another firm, having resolved to offer its people “something more than an EAP,” hired a licensed therapist and certified coach employees can contact confidentially.

STEP 4: DESIGN AND LAUNCH PROGRAMMING (CONTINUED)

- **Group yoga and other forms of group fitness.** One firm noted that group physical activity provides an opportunity for connection and solidarity.
- **Mindfulness and meditation.** Some firms bring in mindfulness experts to lead workshops, guided meditations, and other interactive programs. Other firms partly or fully subsidize subscriptions to meditation apps.
- **Gratitude letter exchange.**

Responses I heard only once

Elder Care

Cardiovascular Health

Hydration Challenge

Mental Health First Aid

Substance Abuse

Drive Engagement

Don't force it; just remind people from time to time about the resources available to them. Use what one firm called "a drip approach": periodically reintroduce your programs and services, drop hints and reminders, and send periodic, non-pushy emails. Deliver ongoing tips, updates, and prompts to action – monthly, weekly, or even twice-weekly.

Drive concrete actions and encourage measurable goals

Educating people and raising awareness are important but not sufficient. Where possible, encourage people to take concrete, specified actions and to aim for concrete goals. Offering a tangible reward (like a gift certificate, a gift item, or a monetary bonus) seems to drive participation, as does a structured "challenge."

From the field

This seems easiest to do with respect to physical activities, and the classic example is the "step challenge." Other firms have done a variety of physical challenges, including one firm whose challenge is now 11 years running. One firm, as mentioned, did a more flexible physical fitness challenge where people would receive a bonus in any month during which they completed ten "well-being events," with some form of proof of completion required, like an app check-in or a yoga class receipt. One firm followed up its presentation on diaphragmatic breathing by challenging participants to take a certain number of diaphragmatic breaths per day, for a certain number of days. That firm also issued a hydration challenge, teaching employees how to calculate their hydration level and encouraging them to set and meet a hydration goal.

STEP 5: DRIVE ENGAGEMENT (CONTINUED)

Emphasizing "small wins" can help people maintain momentum. One firm emphasized "the power of accessible, small habits" that have a "cumulative effect... over time." Get leadership involved and participating, as discussed earlier.

Branding and communications

Branding and communications can be overemphasized - having a great name for your well-being program isn't the same as having a great program - but they do have real utility.

- **They can help reduce stigma.** One firm's associate development program asks participants to set a "wellness goal." The program materials list "attending therapy" as an example of such a goal. The firm could have simply used a placeholder, but they chose that example to help dispel the stigma around therapy.
- **They can help avoid confusion.** A manager at one firm explained that she deliberately avoided using the term "well-being" in her communications because it was already much used with respect to benefits programs. She was concerned that the well-being initiative would receive less attention and recognition if employees misperceived it as a benefits program, so she and her team chose an alternative term.
- **They can increase engagement.** One firm noted that more people will read an email when it includes the branding for the firm's well-being initiative.

STEP 5: DRIVE ENGAGEMENT (CONTINUED)

From the field

Branding and communications can promote inclusiveness. One firm takes care to be inclusive of non-drinkers and people in recovery by advertising social events not as “happy hours” but as networking receptions. (On a related note, they do not serve hard liquor and also aim to offer more interesting and varied events than “cocktails and hors d’oeuvres,” for instance axe throwing, painting, and ping pong.)

Branded swag (free stuff) isn’t a frontline strategy, but it doesn’t hurt. People like it, and it provides some grassroots marketing when people see it around the office.

Remember

But don’t create a brand, a committee, and some internal messaging and then stop there. These are useful steps, but they are table-setting for the actual initiative.

Align Incentive Structures with Well-Being Goals

Whatever a firm's aspirations around well-being, the overriding question is: what behaviors does the firm incentivize, explicitly or implicitly, and what behaviors does it penalize? If a firm hopes to promote work-life balance and well-being but, in practice, rewards punishing hours, sleep deprivation, and all-hours, immediate responsiveness, its well-being efforts – however sincere – will have a limited impact.

For example, a firm's attempts to promote well-being and healthy living will almost inevitably bump up against the centrality of the billable hour. One firm noted the importance of organizations internalizing and communicating with sincerity that attorneys' worth is not based on their billables. This is, of course, easier said than done.

From the field

One firm is combating this problem by allowing attorneys to count up to 25 hours spent practicing mindfulness toward their minimum billable hour requirement.

Tangible rewards – especially straightforward monetary bonuses – and structured challenges can incentivize healthy behaviors, as discussed earlier. But the impact of such programs can't compare to actual, well-being-oriented changes in a firm's material work conditions and culture.

7

STEP 7 OF 7

Evaluate and Iterate

According to law firm well-being expert Anne Brafford, it's not enough to have great content or even great implementation of that content; a firm's well-being team needs to continually collect data, use that data to assess how the initiative is going, and modify the initiative accordingly.

Quote

Anne suggests that a firm “[c]onsider evaluating things like: participation in programs; participant satisfaction; improved knowledge, attitudes, and behaviors; and, ultimately, changes in environment, culture, and targeted well-being-related outcomes (mental health, engagement, job satisfaction, etc.).”

Ready to Build Your Firm's Well-Being Initiative?

Flourish Legal Well-Being delivers **well-being and retention** workshops and coaching trusted by more than half the Am Law 100, drawing on lessons like the ones in this guide. If you're ready to build or strengthen your firm's well-being initiative, book a call.

Book a call → www.teamflourish.com/book

Also in the Well-Being in Law Starter Kit

1

The 7 Steps at a Glance

Seven steps, one page. This distills You Signed the ABA Well-Being Pledge. Now What? into the checklist to bring to your first committee meeting.

2

Needs-Assessment Starter

Before you design programming, talk to your people. These starter questions work for a survey, a focus group, or an informal conversation.

3

Sample Handout: Avoiding Stress Spillover

It's easy to let stress or frustration bleed into an email or a comment in a meeting. This practice keeps that from happening.

4

Sample Handout: The Capacity Check-In: Green, Yellow, or Red?

Midlevel workloads rarely announce when they've tipped from busy into unsustainable – you usually find out after you've said yes to too much. A one-question, weekly check-in keeps you ahead of that moment.

5

Sample Handout: The “Yes And”: How to Say No Without Saying No

When you're at capacity and a partner arrives with a new assignment, a flat “no” feels risky. So the yes slips out, and you pay for it later. The Yes And protects your capacity without a no ever leaving your mouth.

2

Quick-Reference Tools

The guide's key frameworks distilled onto single pages you can print, pin up, or bring to a meeting.

The 7 Steps at a Glance

Seven steps, one page. This distills *You Signed the ABA Well-Being Pledge. Now What?* into the checklist to bring to your first committee meeting.

1 Get Buy-In from Leadership

Secure real buy-in from the top. Have leaders participate visibly, act as champions, and speak openly about their own struggles with well-being.

2 Conduct a Needs Assessment

Talk to your people first, through surveys, focus groups, wellness ambassadors, or informal conversations, before you design anything.

3 Map Out Your Organizational Structure

Form a representative committee for oversight and advice, but give one person or a small team clear ownership so decisions don't stall.

4 Design and Launch Programming

Start small and build slowly. Serve attorneys and staff alike, pick a few pillars, and go beyond the obvious topics.

5 Drive Engagement

Use a steady drip of reminders, concrete challenges with tangible rewards, and thoughtful branding to keep participation up.

6 Align Incentive Structures with Well-Being Goals

Make sure what your firm actually rewards and penalizes matches what it says it values.

7 Evaluate and Iterate

Collect data on participation, satisfaction, and outcomes, then use it to adjust the initiative over time.

Making the Case to Leadership

Ten minutes with your managing partner or executive committee. Here's what to say, drawn from *You Signed the ABA Well-Being Pledge. Now What?*

By the Numbers

Replacing a third-year associate costs a firm **\$650,000–950,000** (N.Y. Law Journal, 2023). A well-being initiative is a modest line item against that backdrop.

What Leadership Needs to Hear

- ✓ **Buy-in has to be real, not just approved.** The strongest initiatives had leaders who participated visibly, not just signed off from a distance.
- ✓ **Participation from the top drives participation everywhere.** "People won't believe in this unless they see partners buying in."
- ✓ **Transparency combats stigma.** Partners speaking openly about their own well-being struggles gives everyone else permission to engage.
- ✓ **The ask doesn't have to be all-or-nothing.** Firms that succeeded often started with a modest, resourced pilot, not a full program with hiring.

Three Ways to Ask for Budget

One firm secured buy-in by presenting leadership with three tiers and letting them choose the level of investment.

Basic	A DIY approach involving no cost.
Intermediate	A resourced approach requiring some funding — the most common starting point.
Advanced	A full, robust program involving hiring.

Needs-Assessment Starter

Before you design programming, talk to your people. These starter questions work for a survey, a focus group, or an informal conversation.

The Method

Surveys, focus groups, wellness ambassadors, or informal one-on-one conversations. Pick whatever degree of formality fits your firm, and start with whichever one you can do this month.

Six questions to start with

- ✓ **What's the biggest source of stress in your day-to-day work right now?**
Opens the door to material work conditions, not just amenities.
- ✓ **What would make it easier for you to take care of your well-being here?**
Surfaces concrete, actionable ideas rather than abstract wish lists.
- ✓ **Is there a topic that affects you or people you know that we don't talk about here?**
This is how firms in the guide surfaced concerns like elder care and depression.
- ✓ **Which of our current benefits or programs, if any, actually feel useful to you?**
Tells you what's already working before you spend on something new.
- ✓ **What's one thing the firm could stop doing that would improve your well-being?**
Points toward root causes, not just new programming to layer on top.
- ✓ **What's one thing we could start doing?**
A low-stakes way to end the conversation with a concrete idea.

3

Sample Handouts

Three tools from Flourish's workshop library – the kinds of resources your people walk away with.

Avoiding Stress Spillover

It's easy to let stress or frustration bleed into an email or a comment in a meeting. This practice keeps that from happening.

The Rule

1 Before Speaking, 3 Before Sending

When you feel stressed, frustrated, or keyed up:

- ✓ Take **one breath** before speaking.
- ✓ Take **three breaths** before sending an email.

Why one vs. three?

In a live conversation, a one-breath pause is discreet. Three might seem odd.

With email, you have privacy to take longer. Plus, email leaves a record, so it's worth taking the extra time.

The Capacity Check-In: Green, Yellow, or Red?

Midlevel workloads rarely announce when they've tipped from busy into unsustainable – you usually find out after you've said yes to too much. A one-question, weekly check-in keeps you ahead of that moment.

The Habit

Once a week, at the same time each week, ask yourself: “Am I green, yellow, or red?”



Green: room to spare

Say yes freely. A good week to invest in a junior or take on the growth opportunity.



Yellow: full

You can handle what you have, but nothing more without trade-offs. Screen every new ask with the Yes And.



Red: over capacity

The problem is what's already on your plate. Don't wait for the next ask: flag it to the partners you're working with and renegotiate deadlines before quality slips.

The “Yes And”: How to Say No Without Saying No

When you're at capacity and a partner arrives with a new assignment, a flat “no” feels risky. So the yes slips out, and you pay for it later. The Yes And protects your capacity without a no ever leaving your mouth.

1 Say yes first.

“I’d love to help with this.”

2 Ask about the deadline.

“Is that a hard deadline, or is it movable?”

3 Show your plate.

“Here’s what else I’m working on right now.”

4 Hand back the prioritization.

“How would you prioritize these?”

Example

“I would love to do this for you. Is that a firm deadline? Is it movable? Here’s what else I’m managing. How would you prioritize it?”

If your capacity truly doesn’t work: keep a referral in your pocket.

“I know [associate] could do a great job with this if the timing doesn’t work on my end.”